

Proposed distribution is contrary to intestacy. As prayed, petitioner would receive approximately 20.4% of the estate; Chornyy, 26.5%; and D Wiley 53%. Intestacy requires equal distributions of assets determined by date-of-distribution value; petitioner offers no factual or legal basis for unequal distributions of the estate.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

9. S-PR-0013436 In Re the Stephen Sankoff Liv Trust

Appearance is required for continued hearing on petition to determine 2015 deed is invalid and to determine trust property.

10. S-PR-0013480 In Re the Estate of Brooks, Arnold F.

Petition for final distribution is recommended for approval as prayed.

11. S-PR-0013674 In Re the Estate of Ayers, Michael David

Petition for final distribution is recommended for approval as prayed.

12. S-PR-0013781 In Re the Estate of Brar, Premjeet

Appearance is required for hearing on petition to administer estate.
Missing proof of publication of notice of hearing for August 24 hearing.

13. S-PR-0013782 In Re the Estate of Sohi, Puneet

Appearance is required for hearing on petition to administer estate.
Missing proof of publication of notice of hearing for August 24 hearing.

14. S-PR-0013840 In Re the Estate of Shaban, David A.

Petition to terminate estate administration is recommended for approval as prayed.

15. S-PR-0013931 In Re the Martin Fam Trust

Appearance is required for continued hearing on petition contesting validity of 2014 trust amendment and for other relief.

The petition is primarily a Prob.C. § 17200 petition, requiring notice under Prob.C. § 17203. There is no provision in the Probate Code for issuance or service of a summons for

a trust petition, and petitioner may not seek to default a responding party for failure to respond to a summons. See, for example, Prob.C. § 1043(a).

Note: contrary to the information stated on page 2 of the petition, Local Rule 20.2.3 does not apply to this proceeding, no tentative ruling is issued by the court, and there is no requirement to notify the court of any request for oral argument. See Local Rule 80.1.4 and Prob.C. § 1043(a).

16. S-PR-0013940 In Re the Estate of O'Leary, Timothy Patrick

Missing notice of hearing for amended petition to administer estate. Missing service of notice of hearing. Missing proof of publication of notice of hearing.

Clarification is needed: ¶¶ 5a(3) & 8) allege decedent was survived by a child; ¶ 7a alleges decedent was not survived by issue. A child of decedent is issue of decedent. Prob.C. § 50.

Clarification is needed: petitioner requests both full and limited IAEA powers. Both full powers and limited powers cannot be granted simultaneously.

17. S-PR-0013944 In Re the Estate of O'Leary, Timothy Patrick

Appearance is required for hearing on amended petition.

The petition does not sufficiently state a legal basis for relief; it is recommended the petition be denied, as follows:

Prob.C. § 21700, cited in the caption and in the petition, does not establish a procedure to petition for relief. Instead, that section establishes standards for proving a promise to make a devise or other facts. Moreover, the verified petition does not appear to satisfy any provision of § 21700 to prove a promise to grant a life estate in the Auburn property to petitioner.

The petition does not show legal grounds for relief under Prob.C. § 850 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 851.

The petition does not show legal grounds for relief under Prob.C. § 17200 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 17203. If the court were to construe the petition as a § 17200 petition, it would be recommended the petition be denied under Prob.C. § 17202 as unnecessary for the protection of the interests of petitioner. Even if the court were to find that the trust § 6.02 terms were applicable to the Auburn property, § 6.02 grants trustee certain discretionary authority but does not give a beneficiary an enforceable right or estate in property. See trust §§ 6.02 and 13.03(r).

The petition does not show legal grounds for an action on a creditor claim against decedent's estate. No creditor claim has been rejected by a personal representative of the